

Calendar Line 5

Subramanyam Ramaswamy vs PPC Sage LLC et al.
24CV450632

Defendants move to compel further responses to special interrogatories, requests for admission, and requests for production of documents.

Timeliness

Plaintiff served verified responses on September 22, 2025. Any motion to compel further responses was required to be filed within 45 days thereafter, i.e., no later than November 6, 2025. (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c), 2033.290, subd. (c).) Defendants did not file this motion until December 4, 2025.

No written stipulation extending the statutory deadline has been shown. Compliance with the 45-day requirement is mandatory and jurisdictional, and an untimely motion must be denied. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Defendants' argument that Plaintiff's responses are "evasive" or "tantamount to no responses" is unavailing. Where verified responses have been served, any alleged deficiencies must be raised through a motion to compel further responses within the statutory period. (*Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 903; *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905–906.) Courts strictly enforce the 45-day limitation. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 136–138.)

Because the motion is untimely, the Court does not reach the merits.

Service

The Court notes the proof of service reflects electronic service only. Electronic service on an unrepresented party requires consent. (Code Civ. Proc., § 1010.6, subd. (c); Cal. Rules of Court, rule 2.251(c)(3)(B).) The record does not establish such consent.

Sanctions

Defendants' request for \$1,140 in sanctions is DENIED because Defendants are not the prevailing party. (Code Civ. Proc., §§ 2030.300, subd. (d), 2031.310, subd. (h), 2033.290, subd. (d).)

Plaintiff's request for \$1,200 in sanctions is also DENIED. Although the discovery statutes mandate sanctions against an unsuccessful moving party absent substantial justification, Plaintiff has not identified any recoverable out-of-pocket expenses. A self-represented non-attorney litigant may not recover attorney fees or compensation for the value of his or her own time. (*Trope v. Katz* (1995) 11 Cal.4th 274, 292; *Argaman v. Ratan* (1999) 73 Cal.App.4th 1173, 1180.) Section 2033.030 authorizes recovery of reasonable expenses incurred; no such expenses have been shown.

DISPOSITION

Defendants' motion is DENIED.

Defendants' sanctions request is DENIED.

Plaintiff's sanctions request is DENIED.

The Court will prepare the order.

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Calendar Line 6
Richard Chamberlain v. Jason Chamberlain
25CV457483

Defendant moves for an order declaring Plaintiff a vexatious litigant pursuant to Code of Civil Procedure section 391, subdivision (b)(3), and for issuance of a prefiling order under section 391.7.

Plaintiff opposes, arguing the motion is premature due to a pending motion for reconsideration of the Court's summary judgment ruling, and further contending that his litigation conduct was justified by Defendant's discovery responses and procedural posture.

LEGAL STANDARD

Under Code of Civil Procedure section 391, subdivision (b)(3), a "vexatious litigant" includes a person who, in any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, or engages in tactics that are frivolous or solely intended to cause unnecessary delay or burden.

There is no bright-line numerical threshold; courts consider the totality of litigation conduct. (See *Morton v. Wagner* (2007) 156 Cal.App.4th 963.)

If a litigant is found vexatious, the Court may enter a prefiling order prohibiting the litigant from filing new litigation in propria persona without prior leave of the presiding judge. (CCP § 391.7.)

ANALYSIS

A. Repeated Filing of Motions and Papers

The record reflects Plaintiff filed approximately 35 to 37 motions, applications, or similar requests for relief in this action within a 12-month period. None resulted in substantive relief in Plaintiff's favor.

While lack of success alone is not dispositive, the volume and repetitive nature of motion practice—particularly in a single action and continuing after dispositive adjudication—supports a finding of abusive litigation conduct when considered in the totality of circumstances.

The Court further notes Plaintiff continued filing motions after entry of summary judgment, including motions directed at already adjudicated issues.

B. Unnecessary and Burdensome Discovery

The record reflects Plaintiff propounded in excess of 165 Requests for Admission, substantially exceeding statutory limitations under Code of Civil Procedure section 2033.030 for non-document authenticity requests.